

STATE OF NEW YORK

86--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. DINOWITZ, ROSENTHAL, COOK, BENEDETTO, DAVILA, BICHOTTE HERMELYN, WALKER -- Multi-Sponsored by -- M. of A. GLICK -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York, in relation to surcharges for the installation or use of certain appliances in housing accommodations subject to rent control or rent stabilization

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The administrative code of the city of New York is amended
2 by adding a new section 26-416.1 to read as follows:

3 § 26-416.1 Surcharges for tenant-installed appliances. The imposition
4 of any surcharge for the installation or use of a tenant-installed
5 appliance is prohibited where the tenant pays for electric utility
6 service.

7 § 2. The administrative code of the city of New York is amended by
8 adding a new section 26-512.1 to read as follows:

9 § 26-512.1 Surcharges for tenant-installed appliances. The imposition
10 of any surcharge for the installation or use of a tenant-installed
11 appliance is prohibited where the tenant pays for electric utility
12 service.

13 § 3. This act shall take effect immediately; provided that section
14 26-416.1 of the city rent and rehabilitation law as added by section one
15 of this act shall remain in full force and effect only as long as the
16 public emergency requiring the regulation and control of residential
17 rents and evictions continues, as provided in subdivision 3 of section 1
18 of the local emergency housing rent control act; and provided, further,
19 that section 26-512.1 of chapter 4 of title 26 of the administrative
20 code of the city of New York, as added by section two of this act, shall
21 expire on the same date as such law expires and shall not affect the
22 expiration of such law as provided under section 26-520 of such law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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